

party through the party's mistake, inadvertence, surprise, or excusable neglect. []and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken."

Applied here, the last date to file this motion was October 21, 2026. Counsel's motion is timely, filed on October 16, 2026, well within six months of the Court's order dismissing this case. In her declaration, Counsel Tai had attributed "serious health conditions, difficult rehabilitation period, and mental confusion" as a result of a life-threatening diagnosis, which she claims were the cause of her non-appearance. After considering the reasons for her non-appearance, the Court finds in its discretion that Counsel Tai's actions amount to excusable neglect.

Ruling

Plaintiff's Motion is **granted**. The dismissal is set aside, and this case is re-opened. Plaintiff is ordered to serve the complaint to Defendant James Martin no later than thirty (30) days from the date of this order, and to file proof of service. The Court sets a Case Management Conference for March 27, 2026 at 8:30 a.m. Plaintiff's counsel is ordered to file a case management conference statement pursuant to court rules and to appear via Zoom to provide an update to the Court on the status of this case.

7. 9:00 AM CASE NUMBER: C23-02289
CASE NAME: PROGRESSIVE WEST INSURANCE COMPANY VS. CRAIG CROSLEY
HEARING ON SUMMARY MOTION
FILED BY: CROSLEY, CRAIG
TENTATIVE RULING:

Crosley's motion for summary judgment and Progressive's motion for leave to file a first amended complaint are **continued** to February 25, 2026 at 9:00 a.m.

The Court requests supplemental briefing limited to whether, for purposes of cancellation under 10 CCR section 2632.19(e), it is legally material that the missing information be characterized as a vehicle identification number (VIN) rather than another form of identifying information, where Progressive renewed the policy with knowledge that it lacked information contends was necessary to identify the vehicle for underwriting purposes. The parties shall also address whether, under these circumstances, Progressive's proposed amendment to allege cancellation based on the failure to provide a "VIN, serial number, or other identifying information of the model of the golf cart" would be futile.

Simultaneous supplemental briefs shall be limited to 10 pages each and shall be filed no later than February 18 at noon, with a courtesy copy to the department. As an exception to the department's normal email policy, the parties may email their courtesy copies to the department, provided the email clearly states that electronic submission has been authorized by the Court, and all counsel of record are copied on the email.